

USE OF FORCE

Texas State Militia — 13th Legion
Training Reference — Legal Framework & Application

1. PURPOSE & LEGAL AUTHORITY

Pursuant to Texas Government Code Chapter 431 and the Second Amendment to the United States Constitution, the Texas State Militia (TSM) is sworn to preserve the life, liberty, and property of all law-abiding citizens through the preparation, training, and support of a lawful citizens' group. To aid in the defense of liberty, the well-regulated TSM shall train citizens to uphold our natural and inalienable rights and defend the United States Constitution and the Constitution of Texas against all enemies, foreign and domestic.

Pursuant to 10 United States Code §246, all citizens not counted as members of the armed forces, or otherwise exempt or barred by law from military service, are members of the unorganized militia. The unorganized militia may be called to service by the Governor of the State of Texas to aid state authorities in the lawful execution of their duties, or by general consensus of the population should the state fail in the execution of its constitutional duties.

CRITICAL UNDERSTANDING: TSM members possess **no law enforcement authority**. We are private citizens. Our legal right to use force derives entirely from the same statutes that apply to every Texas citizen. We have no special powers of arrest, detention, or search. This document trains members on the law as it applies to *all Texans* — not as it applies to law enforcement or military personnel on active duty.

Governing Legal Authorities

Federal

U.S. Constitution, Amendment II

"A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed."

10 U.S.C. §246 — Militia: Composition and Classes

(a) The militia of the United States consists of all able-bodied males at least 17 years of age and under 45 years of age who are, or who have made a declaration of intention to become, citizens of the United States and of female citizens of the United States who are members of the National Guard.

(b) The classes of the militia are — (1) the organized militia, which consists of the National Guard and the Naval Militia; and (2) the **unorganized militia**, which consists of the members of the militia who are not members of the National Guard or the Naval Militia.

32 U.S.C. §109(c) — Maintenance of Other Troops

Authorizes states to maintain defense forces (such as state guards and lawful militia organizations) that are not part of the National Guard, provided they are organized under state law.

Texas Constitution

Texas Constitution, Article I, §23 — Right to Keep and Bear Arms

"Every citizen shall have the right to keep and bear arms in the lawful defense of himself or the State; but the Legislature shall have power, by law, to regulate the wearing of arms, with a view to prevent crime."

Texas Government Code, Chapter 431 — State Militia

Establishes the legal framework for the state militia in Texas. Defines the state militia as comprising the state military forces (Texas National Guard, Texas State Guard) and the **reserve militia** — all individuals liable to serve but not currently serving in the state military forces.

2. FOUNDATIONAL PRINCIPLES

The Standard: Reasonable Belief

Texas law does not require you to be right — it requires you to be **reasonable**. The legal standard for justification is whether a *reasonable person*, under the same circumstances and with the same information available at the time, would have believed force was immediately necessary.

Every use-of-force decision is judged against three factors:

1. **Immediacy** — Is the threat happening right now? Force is justified only when *immediately necessary*. Not before. Not after.
2. **Proportionality** — Is the level of force proportional to the threat? You may use force "to the degree" reasonably believed necessary — no more.
3. **Reasonableness** — Would a reasonable person in your situation have made the same decision?

No Duty to Retreat (Stand Your Ground)

Texas Penal Code §9.32(c) states that a person who has a right to be present at the location where deadly force is used, who has not provoked the person against whom deadly force is used, and who is not engaged in criminal activity at the time deadly force is used **is not required to retreat** before using deadly force.

PRACTICAL APPLICATION: "Stand Your Ground" means you are not legally obligated to flee before defending yourself. It does **not** mean you should never retreat. Tactical withdrawal is often the smarter option. The law gives you a right — not an obligation. Good judgment keeps you alive and out of prison.

Castle Doctrine

Under Texas Penal Code §9.31(a), the law **presumes** your belief that force was reasonable if someone:

- Unlawfully and with force entered or attempted to enter your **occupied habitation, vehicle, or place of business**;
- Unlawfully and with force removed or attempted to remove you from those locations; or
- Was committing or attempting to commit **aggravated kidnapping, murder, sexual assault, aggravated sexual assault, robbery, or aggravated robbery**.

"Presumed reasonable" is a powerful legal shield — it shifts the burden. But it applies only in the specific circumstances listed above.

3. USE OF FORCE CONTINUUM

The use of force continuum is a framework for understanding **proportional response**. It is not a rigid ladder — you do not have to start at the bottom and work your way up. You enter the continuum at whatever level the threat demands, and you de-escalate when the threat diminishes.

LEVEL	DESCRIPTION	APPLICATION
1. Presence	No force used	Your physical presence, posture, and visible preparedness deter aggression. This is always the preferred resolution. Calm, alert, professional bearing.
2. Verbal Commands	Non-physical	Clear, direct verbal communication to de-escalate or direct. Start calm: "You need to leave." Escalate in volume and authority if needed: "Stop. Do not come closer." Clear verbal warnings also establish intent for any witnesses.
3. Empty-Hand Control	Physical, non-lethal	Soft techniques: Grabs, holds, joint locks, escort positions to control or restrain. Hard techniques: Strikes (punches, kicks, elbow strikes) to stop an active physical threat. Used when verbal commands fail and the threat is physical but not deadly.
4. Less-Lethal Methods	Intermediate force	OC spray (pepper spray), impact tools, conducted energy devices (Tasers). These tools bridge the gap between empty-hand control and lethal force. Their use must still be proportional to the threat.
5. Lethal Force	Force capable of causing death or serious bodily	Firearms or any force that could reasonably cause death. Used ONLY when you reasonably believe it is immediately necessary to prevent death or serious bodily injury to yourself or a third person, or to prevent the commission of specific violent felonies (see Section 4

injury

below).

REMEMBER: You will be held accountable for every level of force you apply. "He started it" is not a legal defense. The question is always: *was your response reasonable and proportional to the threat at the moment you used force?*

4. TEXAS LAW — JUSTIFICATION OF FORCE

The following sections of the Texas Penal Code define when force and deadly force are legally justified. Every TSM member must know these provisions. Ignorance of the law is not a defense.

Self-Defense — TPC §9.31

A person is justified in using **force** against another when and to the degree the actor **reasonably believes** the force is **immediately necessary** to protect the actor against the other's use or attempted use of **unlawful force**.

When Self-Defense Does NOT Apply (§9.31(b))

- In response to **verbal provocation alone**. Words are not force. Someone cursing at you, threatening you verbally, or insulting you does not justify physical force.
- To resist an **arrest or search** you know is being made by a peace officer, even if the arrest or search is unlawful — *unless* the officer uses greater force than necessary.
- If you **consented** to the exact force used or attempted (e.g., mutual combat).
- If you **provoked** the other person's use of force, unless you have abandoned the encounter and clearly communicated that to the other person, and the other person continues or attempts to use unlawful force.

Deadly Force in Defense of Person — TPC §9.32

A person is justified in using **deadly force** against another:

1. If the actor would be justified in using force under §9.31; **AND**
2. When and to the degree the actor reasonably believes the deadly force is immediately necessary:
 - To protect the actor against the other's use or attempted use of **unlawful deadly force**; or
 - To prevent the other's **imminent commission** of aggravated kidnapping, murder, sexual assault, aggravated sexual assault, robbery, or aggravated robbery.

Defense of Third Person — TPC §9.33

A person is justified in using force or deadly force to protect a **third person** if:

1. Under the circumstances as the actor reasonably believes them to be, the actor would be justified under §9.31 or §9.32 in using force or deadly force to protect *himself* against the threat he reasonably believes is threatening the third person; **AND**
2. The actor reasonably believes his intervention is **immediately necessary** to protect the third person.

KEY POINT: You step into the shoes of the person you're defending. If *they* would be justified in using force to defend themselves, *you* are justified in using that same level of force on their behalf. But you must reasonably believe intervention is immediately necessary. If police are handling the situation — stay out of it.

Protection of Life or Health — TPC §9.34

- A person is justified in using **force, but not deadly force**, to prevent another from committing suicide or inflicting serious bodily injury on themselves.
- A person is justified in using **force or deadly force** when immediately necessary to **preserve another's life in an emergency**.

Protection of Property — TPC §9.41

A person in lawful possession of land or tangible, movable property is justified in using **force** (not deadly force) when and to the degree the actor reasonably believes the force is immediately

necessary to prevent or terminate another's trespass on the land or unlawful interference with the property.

Deadly Force to Protect Property — TPC §9.42

A person is justified in using **deadly force** to protect property when:

- 1. The actor would be justified in using force under §9.41; **AND**
- 2. The actor reasonably believes deadly force is immediately necessary to prevent the imminent commission of:
 - **Arson**
 - **Burglary**
 - **Robbery or aggravated robbery**
 - **Theft during the nighttime**
 - **Criminal mischief during the nighttime**

CAUTION — CIVIL LIABILITY: Per TPC §9.06, the fact that your conduct is justified under Chapter 9 **does not abolish or impair any civil remedy** for that conduct. You may be criminally justified and still be sued in civil court. Even a justified shooting can result in years of litigation and financial ruin.

Protection of Third Person's Property — TPC §9.43

You may use force or deadly force to protect **another person's property** under the same conditions as §9.41/§9.42, provided:

- The interference constitutes attempted or completed theft or criminal mischief; **OR**
- The third person requested your protection of their property; **OR**
- You have a legal duty to protect the property; **OR**
- The property owner is your spouse, parent, child, resides with you, or is under your care.

Reckless Injury to Innocent Third Persons — TPC §9.05

YOU ARE RESPONSIBLE FOR EVERY ROUND. Even if your use of force is fully justified, if you **recklessly** injure or kill an innocent third person in the process, the justification defense is **unavailable** in a prosecution for that injury or death. Know your target. Know what is behind your target. Know what is beyond your target.

5. MILITIA-SPECIFIC CONSIDERATIONS

What We Are — and What We Are Not

WE ARE	WE ARE NOT
Private citizens exercising constitutional rights	Law enforcement officers
A lawful militia organized under TX Gov Code Ch. 431 and the U.S. Constitution	An arm of any government agency
Trained individuals prepared to defend life, liberty, and property	Vigilantes, paramilitaries, or self-appointed police
Subject to the same laws as every other Texas citizen	Exempt from any federal, state, or local law

When Called to Service

The unorganized militia may be called to service by the Governor to aid state authorities. If activated by lawful authority, additional rules of engagement and legal protections may apply as directed by that authority. **Until and unless activated, we operate strictly as private citizens.**

Conduct During Training & Operations

- **No enforcement actions.** We do not conduct patrols, checkpoints, arrests, or detentions unless under the lawful direction of state authority. We do not police our communities — we prepare to

defend them.

- **De-escalation first, always.** We train to fight so that we don't have to. Every encounter should be resolved at the lowest possible level of force.
- **Accountability.** Every TSM member is individually responsible for their use of force decisions. The unit does not provide legal defense for unjustified force. Act within the law or face the consequences alone.
- **Weapons discipline.** Apply the four fundamental safety rules at all times:
 1. Treat every weapon as if it is loaded.
 2. Never point a weapon at anything you do not intend to destroy.
 3. Keep your finger straight and off the trigger until you are ready to fire.
 4. Know your target and what is beyond it.

Interaction with Law Enforcement

- **Cooperate fully.** If law enforcement arrives at a scene where force was used, comply with all lawful instructions immediately.
- **Identify yourself.** State clearly that you are a private citizen. Do not claim law enforcement or military authority.
- **Secure your weapon.** Holster or ground your weapon before police arrive if possible. Having a weapon in hand when law enforcement arrives dramatically increases the risk of being mistaken for the threat.
- **Invoke your rights.** You have the right to remain silent and the right to an attorney. After identifying yourself and stating that you were the victim / acted in self-defense, exercise those rights. Do not provide detailed statements at the scene without legal counsel.

6. AFTER A USE OF FORCE INCIDENT

1. **Ensure the scene is safe.** Scan for additional threats. Secure the threat if possible without escalating.
2. **Call 911 immediately.** Request law enforcement and medical assistance. You are the *complainant*, not the suspect — frame it that way: *"I was attacked and had to defend myself. I need police and an ambulance at [location]."*
3. **Render aid** if it is safe to do so and you are trained. Texas law (TPC §9.34) justifies force to preserve life in an emergency.
4. **Identify witnesses.** Note who saw what happened before they leave the scene.
5. **Secure your weapon.** Holster or safe your weapon before law enforcement arrives.
6. **Cooperate, then invoke.** Identify yourself. State that you are the victim and that you will cooperate fully — but that you want an attorney present before making a detailed statement.
7. **Document.** As soon as possible, write down everything you remember — timeline, what you saw, heard, felt, and why you believed force was necessary. Memory degrades rapidly after high-stress events.
8. **Notify your chain of command.** Report the incident to unit leadership as soon as practical.

LEGAL REALITY: Even a fully justified use of force — particularly lethal force — will likely result in a criminal investigation and may result in a grand jury proceeding. You may also face civil litigation regardless of criminal outcome. Every TSM member should maintain a legal defense plan (carry insurance, attorney on retainer, or a legal defense organization membership such as USCCA, US LawShield, or CCW Safe).

APPENDIX: STATUTORY REFERENCES

CITATION	SUBJECT
U.S. Constitution, Amendment II	Right to keep and bear arms
10 U.S.C. §246	Militia composition and classes
32 U.S.C. §109(c)	State maintenance of defense forces

TX Constitution, Art. I, §23	Right to keep and bear arms (Texas)
TX Gov. Code, Ch. 431	State Militia
TX Penal Code §9.02	Justification as a defense
TX Penal Code §9.05	Reckless injury of innocent third person
TX Penal Code §9.06	Civil remedies unaffected
TX Penal Code §9.31	Self-defense
TX Penal Code §9.32	Deadly force in defense of person
TX Penal Code §9.33	Defense of third person
TX Penal Code §9.34	Protection of life or health
TX Penal Code §9.41	Protection of own property
TX Penal Code §9.42	Deadly force to protect property
TX Penal Code §9.43	Protection of third person's property

Texas State Militia — 13th Legion · Use of Force Training Reference
This document is for training purposes only and does not constitute legal advice.
Consult a licensed attorney for legal counsel regarding specific situations.